

The Unorganised Workers' Social Security Rules, 2009

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The Unorganised Workers' Social Security Rules, 2009

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The Unorganised Workers' Social Security Rules, 2009

Rule THE-UNORGANISED-WORKERS-SOCIAL-SECURITY-RULES-2009 of 2009

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The Unorganised Workers' Social Security Rules, 2009

Published vide G.S.R. 118(E), dated 24.2.2009 and published in the Gazette of India, Extraordinary, Part II, Section 3(i), dated 24.2.2009.

1066.

In exercise of the powers conferred by section 13 of the Unorganised Workers' Social Security Act, 2008 (33 of 2008

), the Central Government hereby makes the following rules, namely:--

1.

Short title and commencement .-(1) These rules may be called The Unorganised Workers' Social Security Rules, 2009.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions .-(1) In these rules, unless the context otherwise requires,--

(a)

"Act" means the Unorganised Workers' Social Security Act, 2008 (33 of 2008

);

(b)

"Board" means the National Social Security Board constituted under section 5 of the Act;

(c)

"Chairperson" means the Chairperson of the Board;

(d)

"member" means a member of the Board;

(e)

"section" means a section of the Act.

(2)

Words and expressions used and not defined in these rules but defined in the Act shall have the meanings respectively assigned to them in the Act.

3.

Term of office of members .-(1) A member, other than an ex officio member, shall hold office for a period not exceeding three years from the date of his nomination.

(2)

[Nomination of a member under sub-clause (iv) of clause (c) of sub-section (2) of section 5 shall be made by the Central Government in concurrence with the Chairman or Speaker of the Rajya Sabha or the Lok Sabha:

Provided that a member referred to in this sub-rule shall cease to be a member of the Board if he ceases to be a member of the House of Parliament.]

(3)

A member nominated under sub-clauses (i), (ii) and (iii) of clause (c) of sub-section (2) of section 5 shall cease to be a member of the Board if he ceases to represent the category of interest from which he was so nominated:

[Provided that out of seven persons nominated under sub-clause (iii), one member each from the Scheduled Caste, the Scheduled Tribe, the Minorities and Women shall be represented.]

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(4)

A member shall be eligible for re-nomination.

4.

Resignation .-(1) A member of the Board, not being an ex officio member, may resign his office by a letter in writing addressed to the Chairperson.

(2)

The seat of such a member shall fall vacant from the date on which his resignation is accepted or on the expiry of thirty days from the date of receipt of intimation of resignation, whichever is earlier.

(3)

The power to accept the resignation of a member shall vest in the Chairperson who, on accepting the resignation, shall report to the Board at its next meeting.

5.

Change of address .-If a member changes his address, he shall notify his new address to the Member--Secretary of the Board who shall thereupon enter his new address in the official records:

Provided that if a member fails to notify his new address, the address in the official records shall for all purposes be deemed to be the member's correct address.

6.

Manner of filling vacancies .-When a vacancy occurs or is likely to occur in the membership of the Board, the Chairperson shall submit a report to the Central Government and on receipt of such report, the Central Government may, by notification, nominate a person to fill the vacancy and the person so nominated shall hold office for the

remainder of the term of office of the member in whose place he is nominated.

7.

Allowances of members .-(1) The travelling allowance of an official member of the Board shall be governed by the rules applicable to him for journey performed by him on official duties and shall be paid by the authority paying his salary.

(2)

The non-official members of the Board shall be paid travelling allowance for attending the meetings of the Board at such rates as are admissible to a Group "A" Officer of the Central Government and daily allowances shall be calculated at the maximum rate admissible to Group "A" Officers of the Central Government in their respective places.

[Provided that a member nominated under sub-clause (iv) of clause (c) of sub-section (2) of Section 5 of the Act shall be entitled to such travelling and daily allowances as may be admissible to them as Member of Parliament appointed in Committees and Commissions set up by the Central Government.]

8.

Disposal of business .-Every matter which the Board is required to take into consideration shall be considered at a meeting of the Board, or if the Chairperson so directs, by sending the necessary papers to every member for opinion, and the matter shall be disposed of in accordance with the decision of the majority:

Provided that where there is no opinion of majority on a matter and the members of the Board are equally divided, the Chairperson shall have a second or a casting vote.

Explanation .-The expression "Chairperson" for the purpose of the above proviso shall include a member nominated or chosen under sub-rule (2) of rule 9 to preside over a meeting.

9.

Meetings .-(1) The Board shall meet at such places and at such times as may be decided by the Chairperson and it shall meet at least once in four months.

(2)

The Chairperson shall preside over every meeting of the Board in which he is present and in his absence he may nominate a member of the Board to preside over such a meeting in his place and in the absence of such nomination by the Chairperson, the members of the Board present in such meeting may choose from amongst themselves a member to preside over the meeting.

10.

Notice of meetings and list of business .-(1) Ordinarily, two weeks notice shall be given to the members of the Board of a proposed meeting:

Provided that the Chairperson, if he is satisfied that it is expedient so to do, may give notice of longer period not exceeding one month for such meeting.

(2)

No business except which is included in the list of business for a meeting of the Board shall be considered at the meeting without the permission of the Chairperson.

(3)

The Chairperson may at any time call a special meeting of the Board in case of urgency, after informing the members in advance about the subject-matter of discussion and the reasons of urgency.

11.

Quorum .-(1) No business shall be transacted at any meeting of the Board unless at least six members are present in that meeting which shall include at least one member of Parliament:

Provided that if at a meeting, less than six members are present, the Chairperson may adjourn the meeting to another date informing the members present and giving notice to the other members that he proposes to dispose of the business at the adjourned meeting whether there is prescribed quorum or not, and it shall thereupon be lawful for him to dispose of the business at the adjourned meeting irrespective of the number of members attending.

(2)

The Central Government may debar any member, other than ex officio members, from taking part in the Meeting of the Board, if--

(a)

he absents himself from three consecutive meetings of the Board without written information to and consent of the Chairperson, or

(b)

in the view of the Central Government, such member has ceased to represent the interest which he purports to represent on the Board.

12.

Manner of making application for registration of unorganised worker .-(1) The application referred to in sub-section (2) of section 10 of the Act shall be made in Form I, to the District Administration.

FORM 1

(See rule 12)

Name of the unorganised
worker.....

Father's/husband's
name.....

Occpation.....

.
Address.....

Present.....

Permanent.....

..
Dependents.....

....
(a)

Father.....

(b)

Mother.....

(c)

Dependent
children.....

(d)

Others.....

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